

Buyer Representation Agreement - Commercial Mandate for Purchase

This is an Exclusive Buyer Representation Agreement - Commercial, Mandate for Purchase

BETWEEN:

BROKERAGE: (the "Brokerage"),

ADDRESS:

..... Tel. No. Fax No.

AND

BUYER: (the "Buyer"),

ADDRESS:

The Buyer hereby gives the Brokerage the **exclusive and irrevocable authority** to act as the Buyer's agent

commencing at on the day of , 20.....,
(a.m./p.m.)

and expiring at 11:59 p.m. on the day of , 20..... (Expiry Date)

{ Buyer acknowledges that the time period for this Agreement is negotiable between the Buyer and the Brokerage, however, in accordance with the Trust in Real Estate Services Act, 2002 (TRESA), **the Brokerage must obtain the Buyer's initials.** }

.....
(Buyer's Initials)

for the purpose of locating a real property meeting the following general description:

Property Type (Use):

Geographic Location:

The Buyer hereby warrants that the Buyer is not a party to a representation agreement with any other registered real estate brokerage for the purchase of a real property of the general description indicated above.

.....
(Buyer's Initials)

Schedule A, attached hereto forms part of this Agreement, of which **Schedule A** sets out the details with respect to the services, confidentiality and representation of the Brokerage.

1. DEFINITIONS AND INTERPRETATIONS: For the purposes of this Agreement ("Mandate"):

"Buyer" includes purchaser and a "seller" includes a vendor or a prospective seller or vendor. A "real property" includes real estate as defined in the Trust in Real Estate Services Act (2002). "Self-represented assistance" shall mean assistance provided to a self-represented party. A purchase shall be deemed to include the entering into of any agreement to exchange, or the obtaining of an option to purchase which is subsequently exercised, or an agreement to purchase or transfer shares or assets. A "real estate board" includes a real estate association. Commission shall be deemed to include other remuneration. This Agreement shall be read with all changes of gender or number required by the context. For the purposes of this Agreement, the definition of "Buyer" in the phrase "any property of interest to the Buyer that came to the Buyer's attention from any source whatsoever" shall be deemed to include any spouse, heirs, executors, administrators, successors, assigns, related corporations and affiliated corporations. Related corporations or affiliated corporations shall include any corporation where one half or a majority of the shareholders, directors or officers of the related or affiliated corporation are the same person(s) as the shareholders, directors, or officers of the corporation introduced to or shown the property. "Public Marketing" shall have the same meaning as set out in REALTOR® Cooperation Policy as published by the Canadian Real Estate Association.

2. SERVICES PROVIDED BY THE BROKERAGE: It is understood that the Brokerage may assist the Buyer with any or all of the following services, and any other services, as agreed to between the Buyer and the Brokerage:

- to identify the needs of the Buyer.
- to locate available properties that may meet the Buyer's needs.
- to assist the Buyer in negotiations for the purchase of any property of interest to the Buyer (subject to the special provisions for Multiple Representation described below).
- Other: (Attach Schedule if additional space is required)

INITIALS OF BROKERAGE:

INITIALS OF BUYER(S):

- 3. RESPONSIBILITIES OF THE BUYER:** In consideration of the Brokerage undertaking to assist the Buyer, the Buyer agrees to:
- co-operate with the Brokerage with respect to the Brokerage providing any or all of the services described above, as agreed to between the Buyer and the Brokerage.
 - work exclusively with the Brokerage for the purchase of a real property that meets the Buyer's needs.
 - advise the Brokerage immediately of any property of interest to the Buyer that came to the Buyer's attention from any source whatsoever during the currency of this Agreement.
 - submit through the Brokerage all offers by the Buyer during the currency of this Agreement to purchase a real property of the general description indicated above.
 - submit through the Brokerage all offers by the Buyer within days after expiration of this Agreement for the purchase of any property that came to the Buyer's attention from any source whatsoever during the currency of this Agreement.

The Buyer agrees the Brokerage is entitled to be paid a commission of

The Buyer authorizes the Brokerage to receive payment of commission from the seller of the property or the seller's agent. Should the Brokerage be unable to obtain an agreement in writing from the seller or the seller's agent to pay the full commission described above, the Buyer will be so informed in writing prior to submitting an offer to purchase and the Buyer will pay the commission for the transaction, or any deficiency in the amount of commission described above, directly to the Brokerage.

The Buyer agrees to pay such commission as described above even if a transaction contemplated by an agreement to purchase agreed to or accepted by the Buyer or anyone on the Buyer's behalf is not completed, if such non-completion is owing or attributable to the Buyer's default or neglect. The Buyer understands that a failure to negotiate and submit offers through the Brokerage as described herein will make the Buyer liable for payment of commission to the Brokerage. The payment of commission by the seller to the Brokerage will not make the Brokerage the agent for the seller. All amounts set out as commission are to be paid plus applicable taxes on such commission.

- 4. REPRESENTATION:** The Buyer acknowledges that the Brokerage has provided the Buyer with written information explaining agency relationships, including information on Seller Representation, Sub-Agency, Buyer Representation, Multiple Representation and Self-Represented Party assistance. The Brokerage shall assist the Buyer in locating a real property of the general description indicated above and shall represent the Buyer in an endeavour to procure the acceptance of an agreement to purchase such a property.

The Buyer acknowledges that the Buyer may not be shown or offered all properties that may be of interest to the Buyer. The Buyer hereby agrees that the terms of any buyer's offer or agreement to purchase the property will not be disclosed to any other buyer by the Brokerage. The Buyer further acknowledges that the Brokerage may be entering into buyer representation agreements with other buyers who may be interested in the same or similar properties that the Buyer may be interested in buying and the Buyer hereby consents to the Brokerage entering into buyer representation agreements with other buyers who may be interested in the same or similar properties without any claim by the Buyer of conflict of interest. The Buyer hereby appoints the Brokerage as agent for the purpose of giving and receiving notices pursuant to any offer or agreement to purchase a property negotiated by the Brokerage.

MULTIPLE REPRESENTATION: The Buyer hereby acknowledges that the Brokerage may be entering into listing agreements with sellers of properties the Buyer may be interested in buying. In the event that the Brokerage has entered into or enters into a listing agreement with the seller of a property the Buyer may be interested in buying, the Brokerage will require the Buyer's written consent to represent both the Buyer and the seller for the transaction.

The Buyer understands and acknowledges that the Brokerage must be impartial when representing both the Buyer and the seller and equally protect the interests of the Buyer and the seller in the transaction. The Buyer understands and acknowledges that when representing both the Buyer and the seller, the Brokerage shall have a duty of full disclosure to both the Buyer and the seller, including a requirement to disclose all factual information about the property known to the Brokerage.

However, The Buyer further understands and acknowledges that the Brokerage shall not disclose:

- that the seller may or will accept less than the listed price, unless otherwise instructed in writing by the seller;
- that the Buyer may or will pay more than the offered price, unless otherwise instructed in writing by the Buyer;
- the motivation of or personal information about the Buyer or seller, unless otherwise instructed in writing by the party to which the information applies or unless failure to disclose would constitute fraudulent, unlawful or unethical practice;
- the price the Buyer should offer or the price the seller should accept;
- the Brokerage shall not disclose to the Buyer the terms of any other offer, unless otherwise directed in writing by the seller; and
- the Brokerage shall not disclose to the seller the terms of any other offer by the Buyer.

However, it is understood that factual market information about comparable properties and information known to the Brokerage concerning potential uses for the property will be disclosed to both Buyer and seller to assist them to come to their own conclusions.

The Brokerage shall not be appointed or authorized to be agent for either the Buyer or the seller for the purpose of giving and receiving notices where the Brokerage represents both the Buyer and the seller (multiple representation) or where the seller or the buyer is a self-represented party.

MULTIPLE REPRESENTATION AND DESIGNATED REPRESENTATION: The Buyer understands and acknowledges where both the Buyer and seller are represented by a designated representative of the Brokerage, multiple representation will not result, unless that designated representative represents more than one client in the same trade, and will require consent in writing for such multiple representation. In the event of multiple representation and designated representation, the Brokerage duty of disclosure to both the buyer and the seller client is as more particularly set out in the agreement with the respective buyer or seller.

- 5. FINDERS FEES:** The Buyer acknowledges that the Brokerage may be receiving a finder's fee, reward and/or referral incentive, and the Buyer consents to any such benefit being received and retained by the Brokerage in addition to the commission as described above.
- 6. CONSUMER REPORTS:** The Buyer is hereby notified that a consumer report containing credit and/or personal information may be referred to in connection with this transaction.
- 7. INDEMNIFICATION:** The Brokerage and representatives of the Brokerage are trained in dealing in real estate but are not qualified in determining the physical condition of the land or any improvements thereon. The Buyer agrees that the Brokerage and representatives of the Brokerage will not be liable for any defects, whether latent or patent, to the land or improvements thereon. All information supplied by the seller or the listing brokerage may not have been verified and is not warranted by the Brokerage as being accurate and will be relied on by the Buyer at the Buyer's own risk. The Buyer acknowledges having been advised to make their own enquiries to confirm the condition of the property.
- 8. ENVIRONMENTAL INDEMNIFICATION:** The Buyer agrees to indemnify and save harmless the Brokerage and representatives of the Brokerage from any liability, claim, loss, cost, damage or injury as a result of any property of interest to the Buyer being affected by any contaminants or environmental problems.

INITIALS OF BROKERAGE: 

INITIALS OF BUYER(S): 



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- 9. USE AND DISTRIBUTION OF INFORMATION:** The Buyer consents to the collection, use and disclosure of personal information by the Brokerage for such purposes that relate to the real estate services provided by the Brokerage to the Buyer including, but not limited to: locating, assessing and qualifying properties for the Buyer; advertising on behalf of the Buyer; providing information as needed to third parties retained by the Buyer to assist in a transaction (e.g., financial institutions, building inspectors, etc.); and such other use of the Buyer's information as is consistent with the services provided by the Brokerage in connection with the purchase or prospective purchase of the property.
- The Buyer agrees that the sale and related information regarding any property purchased by the Buyer through the Brokerage may be retained and disclosed by the Brokerage and/or real estate board(s) (if the property is an MLS® Listing) for reporting, appraisal and statistical purposes and for such other use of the information as the Brokerage and/or board deems appropriate in connection with the listing, marketing and selling of real estate, including conducting comparative market analyses.
- The Buyer acknowledges that the information, personal or otherwise ("information"), provided to the real estate board or association may be stored on databases located outside of Canada, in which case the information would be subject to the laws of the jurisdiction in which the information is located.
- 10. CONFLICT OR DISCREPANCY:** If there is any conflict or discrepancy between any provision added to this Agreement and any provision in the standard pre-set portion hereof, the added provision shall supersede the standard pre-set provision to the extent of such conflict or discrepancy. This Agreement, including any provisions added to this Agreement, shall constitute the entire Authority from the Buyer to the Brokerage. There is no representation, warranty, collateral agreement or condition, which affects this Agreement other than as expressed herein.
- 11. SUCCESSORS AND ASSIGNS:** The heirs, executors, administrators, successors and assigns of the undersigned are bound by the terms of this Agreement.
- 12. ELECTRONIC COMMUNICATION:** This Agreement and any agreements, notices or other communications contemplated thereby may be transmitted by means of electronic systems, in which case signatures shall be deemed to be original. The transmission of this Agreement by the Buyer by electronic means shall be deemed to confirm the Buyer has retained a true copy of the Agreement.
- 13. ELECTRONIC SIGNATURES:** If this Agreement has been signed with an electronic signature the parties hereto consent and agree to the use of such electronic signature with respect to this Agreement pursuant to the *Electronic Commerce Act, 2000*, S.O. 2000, c17 as amended from time to time.

THE BROKERAGE AGREES TO REPRESENT THE BUYER IN LOCATING A REAL PROPERTY OF THE GENERAL DESCRIPTION INDICATED ABOVE IN AN ENDEAVOUR TO OBTAIN THE ACCEPTANCE OF AN AGREEMENT TO PURCHASE A PROPERTY ON TERMS SATISFACTORY TO THE BUYER.

.....
(Authorized to bind the Brokerage) (Date) (Name of Person Signing)

THIS AGREEMENT HAS BEEN READ AND FULLY UNDERSTOOD BY ME, I ACCEPT THE TERMS OF THIS AGREEMENT AND I ACKNOWLEDGE ON THIS DATE I HAVE SIGNED UNDER SEAL. Any representations contained herein are true to the best of my knowledge, information and belief.

SIGNED, SEALED AND DELIVERED I have hereunto set my hand and seal:

.....
(Name of Buyer)

.....
(Signature of Buyer/Authorized Signing Officer) (Seal) (Date) (Tel. No.)

.....
(Signature of Buyer/Authorized Signing Officer) (Seal) (Date) (Tel. No.)

DECLARATION OF INSURANCE

The Salesperson/Broker/Broker of Record
(Name of Salesperson/Broker/Broker of Record)
hereby declares that he/she is insured as required by TRESA.

.....
(Signature(s) of Salesperson/Broker/Broker of Record)

ACKNOWLEDGEMENT

The Buyer(s) hereby acknowledge that the Buyer(s) fully understand the terms of this Agreement and have received a copy of

this Agreement on the day of, 20

.....
(Signature of Buyer/Authorized Signing Officer) (Date)

.....
(Signature of Buyer/Authorized Signing Officer) (Date)



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Schedule A
Buyer Representation Agreement
- Commercial
Mandate for Purchase

This Schedule is attached to and forms part of the Buyer Representation Agreement - Commercial, Mandate for Purchase (Agreement) between:

BROKERAGE:.....,and

BUYER:.....

This Schedule to the Agreement, *inter alia*, sets out the details of the provision of services, confidentiality and representation by the Brokerage, and subject to the terms of Clause 10 in the Agreement (Conflict or Discrepancy), is in addition to provision of services, confidentiality and representation set out in the Agreement.

This form must be initialed by all parties to the Agreement.

INITIALS OF BROKERAGE:

INITIALS OF BUYER(S):



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